



## Notification Waiver Determination

### Kanda Healthcare – Connecting Families

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| <b>Acquisition</b>           | Kanda Healthcare Pty Ltd ( <b>Kanda</b> ), together with Kanda Foundation Limited ( <b>Kanda Foundation</b> ) and Kanda Management Services Pty Ltd, applied for a notification waiver in respect of their proposed acquisition of 100% of the assets of the disability accommodation and support services business known as Connecting Families ( <b>Connecting Families</b> ), as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.                                                                                                                                                                                                                                                                                    |
| <b>Date of determination</b> | 30 September 2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |

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| <b>Parties to the Acquisition</b>    | <p>Kanda is an Australian care provider supplying a broad range of care services, including aged care, in-home care, disability support, community nursing and children, youth and family services, in metro and regional communities across Australia. Kanda is a registered provider under the National Disability Insurance Scheme (<b>NDIS</b>), providing disability accommodation and support services to NDIS participants across Australia (with the exception of Tas and the NT).</p> <p>Kanda is controlled by Genesis Capital, an Australian-based private equity firm that invests in businesses operating in the healthcare sector. Kanda Foundation is an Australian public company limited by guarantee and a registered charity.</p> <p>Connecting Families is owned and operated by Connecting Families Group Pty Ltd and its subsidiaries, Connecting Families Disability Services Pty Ltd, Connecting Families Centred Care Pty Ltd and Connecting Families Shared Services Pty Ltd. Connecting Families is a registered provider under the NDIS and delivers disability accommodation and support services to NDIS participants in the ACT, NSW, Qld, and SA.</p> |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:</p> <ol style="list-style-type: none"><li>there is a small horizontal overlap between Kanda and Connecting Families in some of the local areas in which they both supply NDIS-funded supported independent living and</li></ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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|  | <p>accommodation services, and community support services, in SA, NSW and Qld</p> <p>b. there are alternative providers of NDIS-funded supported independent living and accommodation services, and community support services, in the local areas in which Connecting Families supplies services in SA, NSW and Qld.</p> <p>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.</p> <p>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**